

DRAFT FOR LEGAL REVIEW — This is an unexecuted draft generated by Attorney.AI. It is NOT valid until signed, notarised, attested by the Pakistan Mission and the Ministry of Foreign Affairs, and (for property) registered before the Sub-Registrar. Have it reviewed by a qualified Pakistani lawyer before use.

IN THE SPECIAL COURT (OVERSEAS PAKISTANIS' PROPERTY), Islamabad Capital Territory / federal

Petition No. _____ of 2026

PARTIES

PETITIONER

Bilal Overseas (an overseas Pakistani within the meaning of the Act)

RESPONDENT

Kamran Sheikh

JURISDICTION

The property, House 12, Street 4, F-8/3, Islamabad, is situated in Islamabad Capital Territory / federal. The Petitioner is an overseas Pakistani within the meaning of the Protection of Overseas Pakistanis' Property Act, 2024, and this Court has jurisdiction to hear and decide this petition.

STATEMENT OF FACTS

1. The Petitioner, Bilal Overseas, is the rightful owner of House 12, Street 4, F-8/3, Islamabad.
2. The Respondent, Kamran Sheikh, broke into the property around March 2026.
3. The Respondent has refused to leave the property despite having no right or authority to occupy it.
4. The Petitioner holds the title deed (fard) and CNIC/NICOP as documents supporting their ownership claim.

CAUSE OF ACTION

The Respondent, Kamran Sheikh, has illegally occupied the property, House 12, Street 4, F-8/3, Islamabad, without any right or authority, thereby dispossessing the Petitioner, Bilal Overseas. The Respondent's actions constitute a clear case of illegal occupation and land-grab.

PRAYER (RELIEF SOUGHT)

The Petitioner respectfully prays that this Honourable Court be pleased to:

- (a) restore peaceful and lawful possession of the property to the Petitioner;
- (b) grant such other or further relief as this Honourable Court deems just and proper.

VERIFICATION

Verified at _____ on this _____ day of _____, 20____, that the contents of this petition are true and correct to the best of the Petitioner's knowledge and belief, and nothing material has been concealed.

Petitioner: _____

Through counsel: _____

PROCEDURAL NOTE

Under the Act the Court is required to decide the petition within about 90 days OF THE GRANT OF LEAVE TO DEFEND — this clock does NOT run from the date of filing, and the period before leave to defend is not within it. Any appeal to the High Court must be filed within about 15 days of the decision. The High Court is to decide the appeal within about 90 days. This is a live, fast-moving regime — provinces are enacting and standing up courts on a rolling basis, and timelines differ. Confirm the current position with the relevant High Court and a lawyer before filing.

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